



CHAPTER 10.

An Act to provide for the separation of Dominica from the Leeward Islands, and for purposes connected therewith. A.D. 1938.
[30th March 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) On such day as His Majesty may by Order in Council appoint for the purposes of this Act (hereafter in this Act referred to as “ the appointed day ”) Dominica shall cease to be one of the Presidencies constituting the Colony of the Leeward Islands and shall become a separate colony.

Separation
of Dominica
from
Leeward
Islands.

(2) His Majesty may by Order in Council make such provision as His Majesty in Council thinks proper for the government of Dominica on and after the appointed day, and any such Order in Council may delegate to any authority constituted for Dominica (whether by the Order or otherwise) power to make laws for the peace, order and good government of Dominica, without prejudice to the power of His Majesty in Council, notwithstanding such delegation, to make laws from time to time for any of the said purposes.

Any such Order in Council as aforesaid made before the appointed day, and delegating any power to make laws to an authority already in existence at the time of the making of the Order, may be so framed as to enable

A.D. 1938. — that authority to exercise the delegated power as from the making of the Order, so, however, that no laws made in exercise of that power shall take effect before the appointed day.

(3) An Order in Council under this section may contain such provisions—

(a) determining the laws which, after the beginning of the appointed day, are (subject to amendment or repeal by any competent legislature or authority) to remain valid as respects Dominica notwithstanding the separation of Dominica from the Leeward Islands, and

(b) adapting and modifying any such laws as aforesaid, and any other laws relating or referring to the Leeward Islands or to Dominica,

and such incidental, supplementary and consequential provisions, as His Majesty in Council thinks necessary or expedient in view of the said separation.

34 & 35 Vict. c. 107. In this subsection the expression “laws” includes the Leeward Islands Act, 1871, as amended by any Act of the Legislature of the Leeward Islands, but, save as aforesaid, does not include an Act of Parliament.

(4) Any Order in Council under this section may be varied or revoked by a subsequent Order in Council.

9 & 10 Geo. 5. c. 47. (5) As from the appointed day Dominica shall be one of the West Indian colonies to which the West Indian Court of Appeal Act, 1919, applies, and accordingly section one of that Act shall, as from the said day, have effect as if, in subsection (2) and in subsection (3) of that section, for the words “and St. Vincent” there were substituted the words “St. Vincent and Dominica”.

Short title. 2. This Act may be cited as the Dominica Act, 1938.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:

Adastral House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;

80 Chichester Street, Belfast;
or through any bookseller

Price 1d. net